



SARITA SUICIDE

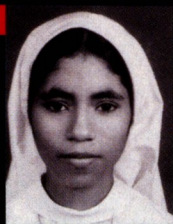
The 25-year-old woman was raped by two Haryana Police constables. Police first refused to register her complaint, then pressurised her to withdraw it. She committed suicide by drinking a bottle of poison inside Haryana Police headquarters in Panchkula in May after police refused to act on her complaint.

WHY IT WAS GIVEN TO CBI: Police initially refused to register a case of rape against the constables. IG, SP, DG transferred for dereliction of duty, accused constables dismissed.

SISTER ABHAYA

Just 17, the nun was found dead in a well at her convent in Kottayam, Kerala in 1992.

WHY IT WAS GIVEN TO CBI: Police tried to pass off the rape and murder case as suicide. High Court ordered CBI to probe. The CBI tried to close the case without finding the culprits. Sixteen years after the crime, the the agency has filed a chargesheet against two priests and a nun of the convent.



aftermath of this landmark judgement, which took four years to implement, the tenure of the CBI director—the only CBI official now interacting with the political leadership—was fixed at two years. In contrast, there are no fixed tenures in the state police, not even for station house officers, the head of a police station, leave alone the state director-general of police. “Every state government that assumes power believes it has the right to transfer officials and appoint its own men,” says a senior police officer. “With politicians reducing the state police to the level of a private militia, you can forget about any impartiality from the police force,” rues Prakash Singh.

Former CBI director Joginder Singh sees the larger and unstated impact of the status quo. “By handing over cases where the government stands to lose votes or where there is media and public pressure, state governments are saved the botheration of trying to improve the police force,” he says.

The clamour for change has been made by police reform committees for several years—the Ribeiro Committee

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states like West Bengal (which has one of the oldest CIDs), Karnataka and Gujarat make fewer demands for inquiries than those like Uttar Pradesh, where the police force has been severely compromised.

Not that the CBI is a paragon of apoliticism—its conduct in trying to apprehend key Bofors accused Ottavio Quattrocchi has been questionable and it has been used in the past to settle political scores. In Kerala, the agency has suffered some severe embarrassment, the latest being its investigation into the sensational death of 17-year-old nun Sister Abhaya, whose body was found in a well at her convent in Kottayam in 1992. It has taken the CBI years to file a chargesheet against two priests and a nun.

However, CBI officials claim an overall conviction rate of over 67 per cent. Most of its senior officers are on deputation from the state police forces. IG Arun Kumar, who is probing the Aarushi murder case, is from the Uttar Pradesh cadre of the IPS. What then explains the ability to deliver results while in the CBI and not while with a state police force? The reason, say police officials, is in the ability of the CBI to insulate itself from political interference in routine investigations and the compartmentalisation of its various divisions like those for anti-corruption, economic offences and special crimes.

In the ruling of Vineet Narayan versus the Union of India case of 1998, the Supreme Court took away the CBI from the direct control of the Centre. In the

in 1998, the Padmanabhaiah Committee in 2000, the Justice Malimath Committee in 2002 and the Soli Sorabjee Committee, which suggested a model police Act in 2006. None of these have been implemented, thanks to opposition from state governments. Among the crucial recommendations suggested by these commissions are separation of the investigation wing from public order duties and fixing the tenure of police officials in crucial posts to insulate them from political interference. With states reluctant to move on reforms or relinquish their vice-like grip on the police forces, the dial-the-CBI game can only continue.

with Ramesh Vinayak, Subhash Mishra and M.G. Radhakrishnan